

Sudhanshu Rajput vs Himanshu Chauhan on 30 June, 2020

Author: Hima Kohli

Bench: Hima Kohli, Subramonium Prasad

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ MAT. APP. (F.C.) 90/2020 & CMs 13693/2020, 13694/2020,
13695/2020, 13696/2020.

SUDHANSHU RAJPUT

..... Appellant

Through: Mr.A.K.Singh, Advocate

versus

HIMANSHU CHAUHAN

....Respondent

Through: Mr.Manoj Tomar, Advocate

CORAM:

HON'BLE MS. JUSTICE HIMA KOHLI

HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD

ORDER

% 30.06.2020 HEARD THROUGH VIDEO CONFERENCING CM 13694/2020 (Exemption)
Allowed, subject to all just exceptions.

CM 13696/2020 (for condonation of delay)

1. The present application has been filed by the appellant for condonation of delay of three days in filing MAT.APP. (F.C.) 90/2020.
2. For the reasons stated in the application, the same is allowed. The delay of three days in filing the appeal is condoned.
3. The application is disposed of.

MAT. APP. (F.C.) 90/2020 & CMs 13693/2020 & 13695/2020

1. The appellant/wife is aggrieved by the judgment dated 03.03.2020 passed by the learned Principal Judge, Family Court, South East District, Saket, New Delhi, dissolving the marriage of the parties under Section 13 of the Hindu Marriage Act, 1955.

2. As per the admitted facts of the case, the marriage of the parties was solemnized in Delhi on 28.11.2011, a girl child was born from the wedlock on 14.01.2013 and both the parties had parted

company in April 2014. Ever since then, the appellant has been living at her parental home along with the daughter of the parties who is in her care and custody. The daughter is presently 8 years old. Mr. Manoj Tomar, learned counsel for the respondent states that the respondent has moved his home to his native place in District Bijnor.

3. We have enquired from the parties if they are ready and willing to negotiate a one-time settlement to secure the interest of the daughter of the parties as both the appellant and the respondent are working persons.

4. Mr. A.K. Singh, learned counsel for the appellant states that in a petition filed by the appellant on behalf of the daughter under Section 125 Cr.P.C. the Family Court, Saket has directed the respondent to pay her maintenance @ Rs.12,000/- per month with 10% increase on an annual basis.

5. After interacting with learned counsel for the appellant and the respondent we are of the opinion that there is an element of settlement in the matter. Both sides agree that they are willing to negotiate a one-time settlement to secure the interest of the girl child so that both sides can part company peacefully thereafter.

6. Accordingly, with the consent of the parties and without prejudice to their respective rights and contentions, they are directed to appear before the Mediator, to be appointed by the Delhi High Court Mediation and Conciliation Centre, on 08.07.2020 at 12.00 PM, for participating in online mediation. The parties along with their respective counsel shall appear virtually before the Mediator. The learned Mediator shall have discussions with the parties and submit a report before the next date of hearing.

7. List on 25.09.2020, 2012 in the category of 'directions', for reporting settlement, if any.

HIMA KOHLI, J.

SUBRAMONIUM PRASAD, J.

JUNE 25, 2020 dkb